

legislative purposes.⁴⁰ *Cummings v. Missouri*, 4 Wall., at 319-320; *Hawker v. New York*, 170 U. S. 189, 193-194 (1898); *Dent v. West Virginia*, 129 U. S. 114, 128 (1889); *Trop v. Dulles*, 356 U. S. 86, 96-97 (1958) (plurality opinion); *Kennedy v. Mendoza-Martinez*, 372 U. S. 144, 168-169 (1963). Where such legitimate legislative purposes do not appear, it is reasonable to conclude that punishment of individuals disadvantaged by the enactment was the purpose of the decisionmakers.

Application of the functional approach to this case leads to rejection of appellant's argument that the Act rests upon a congressional determination of his blameworthiness and a desire to punish him. For, as noted previously, see *supra*, at 452-454, legitimate justifications for passage of the Act are readily apparent. First, in the face of the Nixon-Sampson agreement which expressly contemplated the destruction of some of appellant's materials, Congress stressed the need to preserve "[i]nformation included in the materials of former President Nixon [that] is needed to complete the prosecutions

⁴⁰ In determining whether punitive or nonpunitive objectives underlie a law, *United States v. Brown* established that punishment is not restricted purely to retribution for past events, but may include inflicting deprivations on some blameworthy or tainted individual in order to prevent his future misconduct. 381 U. S., at 458-459. This view is consistent with the traditional purposes of criminal punishment, which also include a preventive aspect. See, e. g., H. Packer, *The Limits of the Criminal Sanction* 48-61 (1968). In *Brown* the element of punishment was found in the fact that "the purpose of the statute before us is to purge the governing boards of labor unions of those whom Congress regards as guilty of subversive acts and associations and therefore unfit to fill [union] positions" 381 U. S., at 460. Thus, *Brown* left undisturbed the requirement that one who complains of being attainted must establish that the legislature's action constituted punishment and not merely the legitimate regulation of conduct. Indeed, just three Terms later, *United States v. O'Brien*, 391 U. S. 367, 383 n. 30 (1968), which, like *Brown*, was also written by Mr. Chief Justice Warren, reconfirmed the need to examine the purposes served by a purported bill of attainder in determining whether it in fact represents a punitive law.